Manoj Kumar Singh vs Cbi on 19 January, 2024

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.A.44/2024
MANOJ KUMAR SINGH
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CBI
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CORAM:
HON'BLE MR. JUSTICE VIKAS MAHAJAN
OR

% 19.01.2024 CRL.M.A. 1748/2024 (exemption)

1. Allowed, subject to all just exceptions.

2. Application stands disposed of.

3. Admit.

4. List in the category of 'Regular Matters' in due course. CRL. M. (BAIL) 107/2024 (seeking suspension of sentence)

5. This is an application seeking suspension of sentence.

6. The learned counsel for the appellant / applicant submits that the punishment awarded to the present petitioner is for a period of (i) 04 years for This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 25/01/2024 at 02:30:10 the offence punishable under Sections 120B IPC read with Sections 420/467/468/471 IPC read with Section 13(1)(d) of the Prevention of Corruption Act, 1988; (ii) 04 years for the offence punishable under sections 13(2) r/w Section 13(1)(d) of PC Act, 1988 and (iii) 02 years for the offence punishable under section 420 IPC. It was further directed that all the sentences of imprisonment shall run concurrently.

7. He submits that the learned Trial Court while awarding punishment to the appellant has taken into account the amendment made in Section 13(2) of the Prevention of Corruption Act, 1988 w.e.f. 16th January, 2014, whereby the minimum punishment was enhanced to 04 years from 01 year and

maximum punishment was enhanced to 10 years from 07 years.

8. He submits that taking into account the enhanced minimum punishment made applicable by an amendment brought in the year 2014, the minimum punishment has been imposed to the petitioner. According to the learned counsel enhanced minimum punishment will not be applicable in the present case, since the commission of an offence was prior to the aforesaid amendment. He submits that since the intention of the learned Trial Court was to impose minimum punishment prescribed for the offence, therefore, the minimum punishment which ought to have been imposed is 01 year that was applicable prior to the amendment, as the offence was allegedly committed before the amendment was brought in the year 2014.

9. This position is disputed by learned SPP appearing on behalf of respondent / CBI. He contends that the offence in the present case is related to banking fraud and it was a continuous offence, therefore, the enhanced sentence will be applicable. In the alternative, he submits that even prior to the amendment the punishment of 04 years could have been imposed on the This is a digitally signed order.

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10. In view of the above, issue notice. Learned SPP for the respondent / CBI accepts notice.

11. Let reply be filed to the present application before the next date.

12. List on 30.01.2024 before the 'Roster Bench'.

VIKAS MAHAJAN, J JANUARY 19, 2024 N.S. ASWAL This is a digitally signed order.

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